

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
AUSTIN CORNELIUS,

Plaintiff,

-against-

CITY OF NEW YORK, SERGEANT BOYD, BADGE
NUMBER 825, POLICE OFFICER DERLETH,
BADGE NUMBER 22850, AND POLICE OFFICER
GILLEN, BADGE NUMBER 16945,Defendants.
-----X

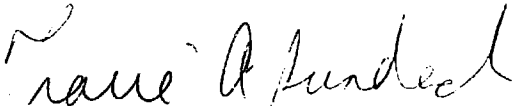
Index No.:

Date Purchased:

Plaintiff designates Queens
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
March 22, 2022
TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
AUSTIN CORNELIUS
180 South Broadway - Suite 306
White Plains, New York 10605
(914) 946-8100

Defendants' addresses:

CITY OF NEW YORK
100 Church Street
New York, New York 10007SERGEANT BOYD, BADGE NUMBER 825,
POLICE OFFICER DERLETH, BADGE
NUMBER 22850,
POLICE OFFICER GILLEN, BADGE
NUMBER 16945
105TH Precinct
92-08 222nd Street
Queens Village, New York 11428

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
AUSTIN CORNELIUS,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, SERGEANT BOYD, BADGE
NUMBER 825, POLICE OFFICER DERLETH,
BADGE NUMBER 22850, POLICE OFFICER
GILLEN, BADGE NUMBER 16945,**VERIFIED COMPLAINT**Defendants.
-----X

Plaintiff AUSTIN CORNELIUS by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, respectfully alleges as follows:

1. Plaintiff AUSTIN CORNELIUS is a black male, a citizen of the United States, and at all relevant times a resident of the City and State of New York.

2. At all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

3. At all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, including all the police officers thereof.

4. At all times hereinafter mentioned, Defendant SERGEANT BOYD, BADGE NUMBER 825, was employed by Defendant CITY OF NEW YORK as a police officer.

5. At all times hereinafter mentioned, Defendant SERGEANT BOYD, BADGE NUMBER 825, acted within the scope of his employment for Defendant CITY OF NEW YORK.

6. At all times hereinafter mentioned, Defendant SERGEANT BOYD, BADGE NUMBER 825, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer

for said city and state.

7. At all times hereinafter mentioned, Defendant POLICE OFFICER DERLETH, BADGE NUMBER 22850, was employed by Defendant CITY OF NEW YORK as a police officer.

8. At all times hereinafter mentioned, Defendant POLICE OFFICER DERLETH, BADGE NUMBER 22850, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. At all times hereinafter mentioned, Defendant POLICE OFFICER DERLETH, BADGE NUMBER 22850, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

10. At all times hereinafter mentioned, Defendant POLICE OFFICER GILLEN, BADGE NUMBER 16945, was employed by Defendant CITY OF NEW YORK as a police officer.

11. At all times hereinafter mentioned, Defendant POLICE OFFICER GILLEN, BADGE NUMBER 16945, acted within the scope of his employment for Defendant CITY OF NEW YORK.

12. At all times hereinafter mentioned, Defendant POLICE OFFICER GILLEN, BADGE NUMBER 16945, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City and State of New York, and under the authority of his office as a police officer for said city and state.

13. On January 13, 2021, at approximately 11:30 P.M., Plaintiff AUSTIN CORNELIUS was in front of 220-16 Jamaica Avenue, Queens Village, New York when he was suddenly accosted by members of the New York City Police Department including Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945.

14. On the aforementioned date, time and place, Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, placed Plaintiff AUSTIN CORNELIUS under arrest despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

15. Following his arrest, Plaintiff AUSTIN CORNELIUS was taken to the 105th Precinct (92-08 222nd Street, Queens Village, New York 11428) and placed in a holding cell while his arrest was processed. Several hours later, while preparing to transport Plaintiff AUSTIN CORNELIUS to Queens Central Booking, Defendant CITY OF NEW YORK its agents, servants and/or employees improperly applied handcuffs to Plaintiff causing the handcuffs to be too tight. Plaintiff AUSTIN CORNELIUS complained about the handcuffs and in response Defendant SERGEANT BOYD, BADGE NUMBER 825, stated that “the handcuffs were made for speed, not comfort”, or words to that effect.

16. Plaintiff AUSTIN CORNELIUS was then transported to Queens Central Booking for arraignment. Once at Queens Central Booking, Plaintiff AUSTIN CORNELIUS was placed in a holding cell. While in the holding cell Plaintiff requested medical attention for his wrists which were swollen and painful. Plaintiff AUSTIN CORNELIUS was removed from the holding cell and rear cuffed. Plaintiff AUSTIN CORNELIUS was then ordered to put one leg on a rolling office chair so that he could be shackled. As Defendant POLICE OFFICER GILLEN, BADGE NUMBER 16945, was placing a shackle on Plaintiff’s left leg, Defendant POLICE OFFICER DERLETH, BADGE NUMBER 22850, without cause, justification or excuse shoved Plaintiff causing Plaintiff to lose his balance and fall to the floor. As a result of the complained of acts, Plaintiff AUSTIN CORNELIUS sustained serious physical injuries.

17. Thereafter, Plaintiff AUSTIN CORNELIUS was taken to Queens Hospital Center (82-68 164th Street, Queens, New York 11432) where he received initial treatment for his injuries. Plaintiff AUSTIN CORNELIUS was then returned to Queens Central Booking for arraignment.

18. Defendants initiated criminal proceedings against Plaintiff AUSTIN CORNELIUS despite Defendants’ knowledge that they lacked probable cause to do so.

19. Following arraignment, Plaintiff AUSTIN CORNELIUS was taken to Rikers Island where he was incarcerated until his release on or about February 2, 2021.

20. Upon information and belief, on or about March 8, 2021, all criminal charges against Plaintiff AUSTIN CORNELIUS were dismissed.

21. On March 8, 2021, within 90 days of the happening of the complained of incident but more than 30 days prior to the commencement of this action, Plaintiff AUSTIN CORNELIUS duly presented, served, and filed a Notice of Claim, in writing, upon the Comptroller of Defendant CITY OF NEW YORK, setting forth the name and post office address of claimant; the nature of the claim, the time when, the place where, and the manner in which the claim arose.

22. More than 30 days have elapsed since service of said Notice of Claim and payment or adjustment thereof has been neglected or refused on behalf of Defendants CITY OF NEW YORK, SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945.

23. Upon information and belief, the Municipal Hearing regarding the above claim was adjourned on consent of all parties and has not been rescheduled.

24. This action is commenced within one year and ninety days after the cause of action arose

25. As a result of the foregoing, Plaintiff AUSTIN CORNELIUS sustained, *inter alia*, physical injuries, emotional distress, embarrassment, humiliation, and deprivation of his constitutional rights.

AS AND FOR A FIRST CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR ASSAULT

26. Plaintiff AUSTIN CORNELIUS repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

27. The aforementioned acts of Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, placed Plaintiff AUSTIN CORNELIUS in apprehension of imminent harmful and offensive bodily contact.

28. As a result of the conduct of Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, Plaintiff AUSTIN CORNELIUS has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A SECOND CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR BATTERY**

29. Plaintiff AUSTIN CORNELIUS repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

30. Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, touched Plaintiff AUSTIN CORNELIUS in a harmful and offensive manner.

31. Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, did so without privilege or consent from Plaintiff AUSTIN CORNELIUS.

32. As a result of the conduct of Defendant, Plaintiff AUSTIN CORNELIUS has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983**

33. Plaintiff AUSTIN CORNELIUS repeats, reiterates and realleges each and every paragraph of this complaint and further alleges:

34. The level of force employed by Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, was objectively unreasonable and in violation of Plaintiff AUSTIN CORNELIUS's constitutional rights.

35. As a result of the aforementioned conduct of Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, Plaintiff AUSTIN CORNELIUS was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FOURTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE ARREST**

36. Plaintiff AUSTIN CORNELIUS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

37. Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, arrested Plaintiff AUSTIN CORNELIUS in the absence of probable cause and without a warrant.

38. As a result of the aforesaid conduct by Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, Plaintiff AUSTIN CORNELIUS was subjected to an illegal, improper and false arrest by the Defendants and taken into custody and cause to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the Defendants in criminal proceedings.

39. The aforesaid actions by the Defendants constituted a deprivation of Plaintiff AUSTIN CORNELIUS's rights.

AS AND FOR A FIFTH CAUSE OF ACTION
UNDER NEW YORK STATE LAW FOR FALSE IMPRISONMENT

40. Plaintiff AUSTIN CORNELIUS repeats, reiterates, and realleges each and every paragraph of this complaint and further allege:

41. As a result of the foregoing, Plaintiff AUSTIN CORNELIUS was falsely imprisoned, his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints.

42. Plaintiff AUSTIN CORNELIUS was conscious of said confinement and did not consent to same.

43. The confinement of Plaintiff AUSTIN CORNELIUS was without probable cause and was not otherwise privileged.

44. As a result of the aforementioned conduct, Plaintiff AUSTIN CORNELIUS has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

AS AND FOR A SIXTH CAUSE OF ACTION
FOR FALSE ARREST UNDER 42 U.S.C. § 1983

45. Plaintiff AUSTIN CORNELIUS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

46. That at the aforementioned time and place, Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, placed Plaintiff AUSTIN CORNELIUS under arrest, despite Defendants' knowledge that they lacked probable cause to do so.

47. That Plaintiff AUSTIN CORNELIUS had not committed any offense and Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

48. That Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, were aware that probable cause did not exist for the arrest and detention of Plaintiff AUSTIN CORNELIUS and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff AUSTIN CORNELIUS and such actions were committed in bad faith.

49. That, in all of the wrongful acts above alleged, Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff AUSTIN CORNELIUS and such actions were committed in bad faith.

50. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, all committed under color of their authority as a POLICE OFFICER, and while acting in that capacity, Plaintiff AUSTIN CORNELIUS was deprived of the rights and immunities secured to him under

the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

51. As a further result of the above-described acts, Plaintiff AUSTIN CORNELIUS was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SEVENTH CAUSE OF ACTION
FOR FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

52. Plaintiff AUSTIN CORNELIUS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

53. Plaintiff AUSTIN CORNELIUS was falsely imprisoned by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, who procured and/or effected said false imprisonment knowing their actions to be wrongful and malicious and without any basis.

54. Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, and intended to confine Plaintiff AUSTIN CORNELIUS, and Plaintiff AUSTIN CORNELIUS was conscious of the confinement, and Plaintiff AUSTIN CORNELIUS did not consent to the confinement.

55. Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff AUSTIN CORNELIUS and damaging Plaintiff AUSTIN CORNELIUS in his reputation and depriving him of his liberty.

56. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff AUSTIN CORNELIUS suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

AS AND FOR A EIGHTH CAUSE OF ACTION
FOR MUNICIPAL LIABILITY

57. Plaintiff AUSTIN CORNELIUS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

58. Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/ authority, which is forbidden by the Constitution of the United States.

59. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

60. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well- being and constitutional rights of Plaintiff AUSTIN CORNELIUS.

61. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff AUSTIN CORNELIUS as alleged herein.

62. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff AUSTIN CORNELIUS as alleged herein.

63. Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, while acting under the color of state law, were directly and actively involved in violating Plaintiff AUSTIN CORNELIUS' constitutional rights.

64. All of the foregoing acts by Defendant CITY OF NEW YORK, its agents, servants and/or employees including Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, deprived Plaintiff AUSTIN CORNELIUS of federally protected rights including, but not limited to, the right:

- A. To be free from seizure and arrest not based on probable cause;
- B. To be free from unlawful search;
- C. To be free from unwarranted and malicious criminal prosecution;
- D. To be from excessive force; and
- E. To receive equal protection under the law.

AS AND FOR A NINTH CAUSE OF ACTION
FOR NEGLIGENCE IN THE PERFORMANCE OF DUTIES

65. Plaintiff AUSTIN CORNELIUS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges

66. That on January 13, 2021, Defendant CITY OF NEW YORK through its agents, servants and/or employees including, but not limited to, Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, negligently, carelessly, recklessly, and without cause, reason or justification injured Plaintiff AUSTIN CORNELIUS when, *inter alia*, Defendants improperly and negligently applied handcuffs to Plaintiff's wrists.

67. That Defendant CITY OF NEW YORK its agents, servants and employees, including Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, negligently, carelessly and recklessly performed their duties in that they failed to use such care in the performance of their duties as a reasonably prudent police officer would have used under similar circumstances; in that Defendants were negligent, careless, and reckless in failing to apply the handcuffs in a safe and proper manner; in causing, allowing and permitting the handcuffs to remain applied in a dangerous, improper and harmful manner; in exposing Plaintiff to danger and harm; in improperly and inadequately training their employees, including but not limited to, the failure to properly train them to safely and properly apply restraints, including handcuffs, to detained persons; in that they applied restraints in a manner which violated the rules, regulations and/or directives of the New York City Police Department; in failing to exercise due care, diligence and forbearance so as to have avoided this accident and the injuries to the Plaintiff; in violating those laws, statutes, ordinances, rules and regulations applicable hereto, of which the Court may take judicial notice; and in that Defendant CITY OF NEW YORK, its agents, servants and employees, including Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, were otherwise careless, reckless and negligent.

68. As a result of the foregoing, Plaintiff AUSTIN CORNELIUS suffered serious personal injuries causing him to become and remain sick, sore, lame, and disabled; confining him to cell and bed; compelling him to obtain hospital and medical treatment for the injuries in an effort to alleviate and/or cure some of the injuries and disabilities; incapacitating him from his usual duties, and thereby depriving him of the emoluments deprived therefrom, preventing him from enjoying the normal fruits of his activities; and resulting in emotional distress, loss of liberty, substantial monetary expenses, loss and injuries, some of which are permanent in nature.

69. The injuries and damages sustained by Plaintiff AUSTIN CORNELIUS were caused by reason of Defendants' negligence and were not caused by any want, lack of care or caution on the

part of the Plaintiff.

70. This action falls within one or more of the exceptions set forth in CPLR 1602.

71. By reason of the foregoing, Plaintiff AUSTIN CORNELIUS has been damaged in an amount in excess of the jurisdiction of all lower Courts that might otherwise have jurisdiction in this matter.

**AS AND FOR A TENTH CAUSE OF ACTION FOR
NEGLIGENT HIRING AND RETENTION**

72. Plaintiff AUSTIN CORNELIUS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

73. Defendant CITY OF NEW YORK was careless and reckless in hiring and retaining as and for its employee Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, in that said Defendant employees lacked the experience, deportment and ability to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK failed to exercise due care and caution in its hiring practices, and in particular, in hiring the Defendant employees who lacked the mental capacity and the ability to function as an employee of Defendant CITY OF NEW YORK; in that the defendant employees lacked the maturity, sensibility and intelligence to be employed by Defendant CITY OF NEW YORK; in that Defendant CITY OF NEW YORK knew of the lack of ability, experience, deportment and maturity of said defendant employees when they hired them to be employees; and, in that Defendant CITY OF NEW YORK, its agents, servants and/or employees were otherwise careless, negligent and reckless.

74. Defendant CITY OF NEW YORK knew, or should have known in the exercise of reasonable care, the propensities of Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, to engage in the wrongful conduct heretofore alleged in this Complaint.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
NEGLIGENT TRAINING AND SUPERVISION**

75. Plaintiff AUSTIN CORNELIUS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

76. The failure of Defendant CITY OF NEW YORK to adequately train, supervise, discipline or in any way control the behavior of Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, in the exercise of their employment functions, and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK is evidence of the reckless lack of cautious regard for the rights of the public including Plaintiff AUSTIN CORNELIUS. Further, the Defendants exhibited a lack of that degree of due care which prudent and reasonable individuals would show.

77. The failure of Defendant CITY OF NEW YORK to train, supervise, discipline or in any other way control Defendants SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, in the exercise of his employment functions and the failure to enforce the laws of the State of New York and the regulations of Defendant CITY OF NEW YORK, was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff AUSTIN CORNELIUS.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR
RESPONDEAT SUPERIOR LIABILITY**

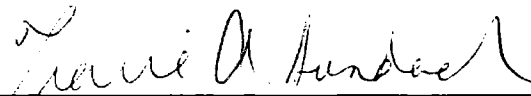
78. Plaintiff AUSTIN CORNELIUS repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

79. Defendant CITY OF NEW YORK is vicariously liable for the acts of its employees and agents who were on duty and acting in the scope of their employment when they engaged in the wrongful conduct described herein.

80. As a result of the foregoing, Plaintiff AUSTIN CORNELIUS is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages in the sum of Two Million Dollars (\$2,000,000.00)

WHEREFORE Plaintiff AUSTIN CORNELIUS demands judgment against Defendants CITY OF NEW YORK, SERGEANT BOYD, BADGE NUMBER 825, POLICE OFFICER DERLETH, BADGE NUMBER 22850, and POLICE OFFICER GILLEN, BADGE NUMBER 16945, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Two Million Dollars (\$2,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
March 22, 2022



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
Attorneys for Plaintiff
AUSTIN CORNELIUS
180 South Broadway - Suite 306
White Plains, New York 10605
(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS.:
COUNTY OF WESTCHESTER)

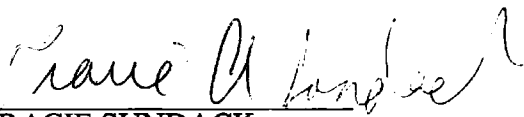
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York,
state:

That I am a principal in the law office of Tracie A. Sundack & Associates, L.L.C., attorneys
of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents
thereof; the same is true to my own knowledge, except for the matters therein alleged to be on
information and belief, and as to those matters I believe them to be true. The reason this
Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where
your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my
own knowledge are as follows: files maintained by our office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
March 22, 2022



TRACIE SUNDACK

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

AUSTIN CORNELIUS,

Plaintiff,

~ against ~

CITY OF NEW YORK, SERGEANT BOYD, BADGE
NUMBER 825, POLICE OFFICER DERLETH, BADGE
NUMBER 22850, POLICE OFFICER GILLEN,
BADGE NUMBER 16945,

Defendants.

SUMMONS & VERIFIED COMPLAINT**TRACIE A. SUNDACK & ASSOCIATES, L.L.C.**

Attorneys for Plaintiff

AUSTIN CORNELIUS

180 South Broadway - Suite 306

White Plains, New York 10605

(914) 946-8100

To: **ALL PARTIES**

Service of a copy of the within

is hereby admitted

Dated:

Attorney(s) for

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated:

Signature: _____

TRACIE A. SUNDACK**PLEASE TAKE NOTICE**NOTICE OF
ENTRYthat the within is a (certified) true copy of a
entered in the office of the clerk of the within named court on

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NOTICE OF
SETTLEMENTthat an Order of which the within is a true copy will be presented for settlement to the
Hon. _____ one of the judges of the within named Court,
at _____ 20 _____, at _____ M.
on _____

Dated: